

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

COURT REPORTERS WILL NO LONGER BE PROVIDED FOR TRIAL AND OTHER HEARINGS WHERE LIVE EVIDENCE WILL BE PRESENTED. IF A PARTY DESIRES A COURT REPORTER FOR ANY HEARING INCLUDING, BUT NOT LIMITED TO, LAW AND MOTION MATTERS, EX PARTE MATTERS AND CASE MANAGEMENT CONFERENCES, IT WILL BE THE RESPONSIBILITY OF THAT PARTY TO PROVIDE ITS OWN COURT REPORTER. PARTIES MUST COMPLY WITH THE COURT'S POLICY ON THE USE OF PRO TEMPORE COURT REPORTERS WHICH CAN BE FOUND ON THE COURT'S WEBSITE AT:

[http://www.occourts.org/media/pdf/7-25-2014 Privately Retained Court Reporter Policy.pdf](http://www.occourts.org/media/pdf/7-25-2014%20Privately%20Retained%20Court%20Reporter%20Policy.pdf)

The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

Unless otherwise ordered by the Court, all Unlimited and Complex proceedings may be conducted via Zoom or in person. On the date of your hearing click the Department C20 Link to begin the remote online check in/Zoom appearance process:

<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: May 28, 2026

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1.	Schear v. City of Huntington Beach 241425004	(Withdrawn)
2.	Li v. Li 25-1517999	Cross-complainants StarRide Auto Services, LLC, Xian Li, and Jiaze Peng ("CC" together) Motion to Request Plaintiff Furnish a Security ("Motion") is DENIED without prejudice.

		There are numerous service issues related to the various pleadings which require CC to 'start over' the motion process and ensure proper service. The Motion was improperly email served on pro per plaintiff Jun Li ("Plaintiff"). (ROA 10.) Unrepresented persons are exempt from mandatory electronic filing (<i>Civ. Proc. Code § 1010.6(g)(4)</i> and <i>CRC Rule 2.253(b)(2)</i>) and there is no evidence in the court's records that Plaintiff consented to receive electronic service of pleadings. CC also filed a late supplemental declaration after Plaintiff filed an opposition to the Motion, which would not permit Plaintiff to consider the statements and evidence therein when preparing the opposition. (ROA 21.) The supplemental declaration was also improperly served by email. As for Plaintiff's pleadings, Plaintiff filed an opposition and then a supplemental declaration three days later. (ROA 19, 22.) Plaintiff failed to file a proof of service for either pleading. As CC did not file a reply brief, it is not clear if this was a conscious choice by CC or if the opposing pleadings were never served on CC. As there are issues with improperly served and late filed pleadings, the court cannot consider the Motion on the merits as it is unclear what, if any, pleadings were served/received by the parties. The Motion is therefore DENIED without prejudice. If CC desire to have the Motion heard on the merits, they will have to start the process over and file a new motion and properly serve Plaintiff. Plaintiff is also notified that he must file proofs of service pursuant to code requirements showing service of pleadings on CC. If Plaintiff does not serve proofs of service in the future, he risks the court refusing to consider said pleadings. <i>Counsel for CC is ordered to serve notice of the ruling.</i>
3.	Gooding v. Houpt 22-1271459	(Moot)
4.	Keno Capital, LLC v. Oakleaf Holding LLC 23-1313683	(Moot)
5.	Mott v. Fortiva Financial, LLC 25-1476893	(Moot)
6.	Fernandez v. Pacific Life Insurance Company 25-1520544	Before the Court is a demurrer by defendant Pacific Life Insurance Company (Pacific Life) as to the complaint filed by plaintiffs Janeth Fernandez, Eriberto Fernandez and Luis Alberto Medina Larios. For the reasons set forth herein, the demurrer is OVERRULED as to the 1st, 4th and 5th causes of action and SUSTAINED as to the 2nd and 3rd causes of action, with 14 days leave to amend. A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the